

1.

CASE #	CASE NAME	HEARING NAME
CVRI2504507	AMARAL-HERNANDEZ VS MDI INTERIORS	MOTION TO SET ASIDE DEFAULT

Tentative Ruling:

The motion is granted. The two entries of default are vacated. The defendants shall serve their answers no later than 7-2-26.

The plaintiff's request for sanctions is denied.

The order to show cause returnable on 7-7-26 is discharged. The case management conference is vacated. A trial setting conference shall be conducted on 10-26-26 at 8:30 A.M. in this department. Before that date, counsel are ordered to meet and confer to select two trial dates that are agreeable to all parties. The dates selected must be on Fridays no more than six months after the TSC.

Analysis:

The showing of mistake, inadvertence, surprise, or excusable neglect, though not compelling, is sufficient. Moreover, the plaintiff does not claim that he would be prejudiced by the relief sought by the defendants. He certainly offers no evidence of any such prejudice. Less than a month – 24 days after the entry of one defendant's default, and only 10 days after the other – passed between the entry of the defaults and the defendants' request that the that the plaintiff stipulate to the vacation of the defaults. Under these circumstances, the policy in favor of litigating legal controversies on their merits prevails.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2506653	DAI VS CORONA REGIONAL MEDICAL CENTER LLC	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

The demurrer to the second cause of action of the first amended complaint is sustained. Further leave to amend is denied unless the plaintiff explains how the FAC can be amended to allege the necessary custodial relationship and custodial neglect.

Analysis:

To plead elder abuse by neglect, "[t]he plaintiff must allege (and ultimately prove by clear and convincing evidence) facts establishing that the defendant: (1) had